

December 20, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 10143
(NINTH REVISION)

EXPIRATION DATE: November 30, 2016

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Eurocom, Inc
Irving, Texas
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 2.2 gases identified in paragraph 6 below for transportation in a non-DOT specification container. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(a) in that a non-DOT specification container is not authorized except as specified herein.
5. BASIS: This special permit is based on the application of Eurocom, Inc. dated December 5, 2012 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/Hazardous Materials Description	Hazard Class/Division	Identification Number	Packing Group
Aerosols, <i>non-flammable, (each not exceeding 1 L capacity)</i>	2.2	UN1950	N/A
Argon, compressed	2.2	UN1006	N/A
Compressed gas, n.o.s.*	2.2	UN1956	N/A
Helium, compressed	2.2	UN1046	N/A
Krypton, compressed	2.2	UN1056	N/A
Neon, compressed	2.2	UN1065	N/A
Xenon, compressed	2.2	UN2036	N/A

* Mixtures comprised of only neon, helium, argon, krypton or xenon gases.

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a nonrefillable, non-DOT specification inside metal container conforming with Messer Griesheim GmbH drawing 81/3402-0/3, Technical Regulations for Compressed Gas (TRG) 300 on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA), and DOT Specification 2Q (§ 178.33a) except as follows:

§ 178.33a-2 Type and size.

1. Single trip inside containers. Must be seamless, equipped with a valve as shown on Newman-Green drawing M115-97-4 on file with the OHMSPA.

2. The capacity of the containers is 61 cubic inches (1-liter or 33.7 fluid ounces). The diameter of the container is 3.15 inches (80 mm).

§ 178.33a-7 Wall thickness.

The wall thickness of the containers is 0.020 inch (0.5 mm).

§ 178.33a-8 Tests

1. One out of each lot of 2,500 or less or five containers out of each lot of more than 2,500, successively produced per hour, must be pressure tested to destruction. Acceptable containers must show no evidence of leakage, distortion or other defects at a pressure below 319 psig (22 bars) and burst at a pressure below 550 psig (37.9 bars).

2. If one of the test containers fails, the lot will be rejected or ten additional containers may be selected at random and subjected to the test under which the failure occurred. Should any of the ten containers fail, the entire lot must be rejected.

§ 178.33a-9 Marking.

1. * * *

(1) "DOT-SP 10143" in lieu of "DOT 2Q".

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each package must be prepared and shipped in accordance with the following:

(1) The pressure in the container must be raised until the pressure in each completed container as prepared for shipment is equivalent to the equilibrium pressure of the lading at 50°C (130°F). Lading equilibrium pressure must not exceed 18 bar (260 psig) at this temperature.

(2) Each container must be packed in a composite package consisting of an inner and outer fiberboard carton. The inner and outer cartons are fabricated from 200 pound test corrugated fiberboard.

(3) Each outside packaging must be marked "INSIDE CONTAINERS COMPLY WITH DOT-SP 10143".

c. Packagings permanently marked 'DOT-E 10143', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 10143'.

d. Shipping papers displaying 'DOT-E 10143' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo aircraft and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notices of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: dl/SGrey